

****April 18, 2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority has completed, in March 2022, an investigation into the operator IKEA Romania S.R.L. and found a violation of the provisions of Article 12 paragraph (3) of the General Data Protection Regulation.

As such, the operator was sanctioned with a fine of 4,949 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint in which the data subject reported that they had contacted the operator to request the deletion of a user account.

During the investigation, it was revealed that the data subject, through repeated requests, exercised their right to have their personal data deleted from an Ikea user account created based on an email address.

The National Supervisory Authority found that the operator IKEA Romania S.R.L. did not provide evidence that it had sent a response within the legal timeframe to the requests through which the data subject exercised their right to deletion as provided by Article 17 of the General Data Protection Regulation, which constitutes a violation of the provisions of Article 12 paragraph (3) of the General Data Protection Regulation.

Article 12 paragraph (3) of the General Data Protection Regulation states:

“The operator provides the data subject with information regarding the actions taken in response to a request under Articles 15-22, without unjustified delays and in any case within one month of receiving the request. This period may be extended by two months when necessary, taking into account the complexity and number of requests. The operator informs the data subject of any such extension within one month of receiving the request, providing the reasons for the delay. In the event that the data subject submits a request in electronic format, the information is provided in electronic format where possible, unless the data subject requests another format.”

At the same time, during the investigation, the operator was also subjected to the corrective measure of taking the necessary steps to ensure compliance, in all cases, with the rights of data subjects provided by the General Data Protection Regulation.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****